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SECRETARY OF THE AIR FORCE

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Personnel

Post-9/11 GI Bill

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This publication supplements the Department of Defense Instruction (DoDI) 1341.13, *Post-9/11 GI Bill* and implements Department of the Air Force (DAF) Policy Directive 36-30, *Military Entitlements*. The DoDI is printed word-for-word in regular font without editorial review. Department of the Air Force (DAF) supplementary material is printed in bold font and indicated by "(Added)(DAF)." This supplement describes Department of the Air Force responsibilities, provides guidance, and prescribes procedures on the implementation, execution, and management of the Post-9/11 GI Bill Program. In collaboration with the Air Force Reserve, Director of Personnel (HAF/REP), Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1), the Deputy Chief of Space Operations for Human Capital (SF/S1), and the Deputy Chief of Staff for Manpower, Personnel, and Services (AF/A1) develops policy for the DAF Post 9/11 GI Bill. This publication applies to DAF uniformed members of the United States Space Force, the Regular Air Force, the Air Force Reserve, and the Air National Guard. This publication may be supplemented at any level, but all supplements must be routed to the Office of Primary Responsibility listed above for coordination prior to certification and approval. Refer recommended changes and questions about this publication to the Office of Primary Responsibility listed above using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See DAFMAN 90-161 *Publishing Processes and Procedures,* for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the publication OPR for non-tiered compliance items. The use, in this publication, of any non-Federal entity name, logo, trademark, commercial product or service, or training, certification and accreditation standards, does not constitute endorsement of the Department of Defense or the Department of the Air Force. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

DoD INSTRUCTION 1341.13

POST-9/11 GI BILL

Originating Component:	Office of the Under Secretary of Defense for Personnel and Readiness
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Incorporates and Cancels:	See Paragraph 1.3.
Approved by:	Gilbert R. Cisneros, Jr., Under Secretary of Defense for Personnel and Readiness
Change 1 Approved by:	Ashish S. Vazirani, Acting Under Secretary of Defense for Personnel and Readiness

Purpose: In accordance with the authority in DoD Directive 5124.02, this issuance:

- Establishes policy, assigns responsibilities, and prescribes procedures for implementing DoD authorities and responsibilities for Chapter 33 of Title 38, United States Code (U.S.C.), also known and referred to in this issuance as the "Post-9/11 GI Bill."
- Establishes policy for the use of supplemental educational assistance (referred to in this issuance as "kickers") for Service members with critical skills or specialties, or for members serving additional service pursuant to Section 3316 of the Post-9/11 GI Bill
- Establishes policy for authorizing the transferability of educational benefits (TEB) in accordance with Section 3319 of the Post-9/11 GI Bill
- **(Added)(DAF) Supplements the DoD Instruction 1341.13 "Post-9/11 GI Bill," by assigning responsibility to and establishing guidance and procedures for the administration and management of the Department of the Air Force (DAF) portion of this program.**

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SECTION 1: GENERAL ISSUANCE INFORMATION

1.1. APPLICABILITY.

a. This issuance applies to OSD, the Military Departments (including the Coast Guard at all times, including when it is a Service in the Department of Homeland Security by agreement with that Department), the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of Inspector General of the Department of Defense, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the DoD.

b. Provisions in this issuance concerning the transferability of unused education benefits to family members also applies to the Commissioned Corps of the U.S. Public Health Service (USPHS Corps), by agreement with the Surgeon General, and to the National Oceanic and Atmospheric Administration Commissioned Officer Corps (NOAA Corps), by agreement with the Secretary of Commerce.

c. **(Added)(DAF) This DAF supplement applies to military personnel of the following components: Regular Air Force (RegAF), United States Space Force (USSF), Air Force Reserve, and Air National Guard.**

1.2. POLICY.

a. Kickers will be authorized to assist in the recruitment, reserve affiliation, and retention of individuals into skills or specialties in which there are critical shortages or, for which it is difficult to recruit or, in the case of critical units, to retain personnel.

b. TEB is used to promote recruitment and retention.

c. Eligible recipients of the Purple Heart may transfer unused Post-9/11 GI Bill education benefits to one or more eligible family members, in accordance with Section 3319(b)(2) of Title 38, U.S.C., regardless of whether the Service member concerned has already served 6 years of service in the Military Services and entered into an agreement to serve at least 4 more years as a uniformed services member, as specified in Section 3319(b)(1) of the Post-9/11 GI Bill.

d. Recipients of the Purple Heart who were in the Military Services (active duty or Selected Reserve) on or after August 31, 2018, will retain existing transfer of educational benefits regardless of whether the transfer occurred before or after August 31, 2018, or whether the service obligation was completed. The policy is limited to Purple Heart recipients who were in the uniformed services on or after the effective date of August 31, 2018, with no retroactive provision.

e. Eligible family members may use the educational benefit when the Service member making the transfer is participating in the Career Intermission Program (CIP) in accordance with DoD Instruction (DoDI) 1327.07. Time while the Service member is participating in the CIP does not count toward the 4-year additional obligation for transfer of educational benefits to family members.

(1) Each Service member participating in CIP must serve in the Individual Ready Reserve during the period of inactivation from active duty. Time spent in the Individual Ready Reserve is not credited towards eligibility for benefits in accordance with Section 3319 of the Post-9/11 GI Bill and this issuance.

(2) A Service member has not "failed to complete" their service due to participation in the CIP. Time before and after the CIP period will count toward the service obligation, as long as the time served is in the Military Services.

(3) CIP participants must return to active duty to fulfill their additional obligated service incurred under the CIP. Accordingly, participation in CIP is not, in and of itself, a basis to stop benefits or seek overpayment from a Service member regarding educational benefits transferred to an eligible family member.

(4) (Added)(DAF) DAF policy for CIP is found in DAFI 36-2008, *Voluntary Limited Period of Active Duty (VLPAD) for Air Reserve Component Service Members and the Career Intermission Program*.

1.3. INCORPORATION AND CANCELLATION.

This issuance incorporates and cancels:

a. Directive-Type Memorandum 18-006, "Transferability of Unused Post-9/11 GI Bill Educational Benefits by Recipients of the Purple Heart," August 31, 2018.

b. Under Secretary of Defense for Personnel and Readiness Memorandum, "Exception to Policy – Continued Moratorium on Implementation of Limitations on Eligibility to Transfer Post-9/11 GI Bill Education Benefits," January 10, 2020.

c. Under Secretary of Defense for Personnel and Readiness Memorandum, "Update on the Definition of Eligible Dependents for the Transfer of Post-9/11 Educational Benefits to Foster Children and Legal Wards," April 9, 2021.

d. Under Secretary of Defense for Personnel and Readiness Memorandum, "Exception to Policy – Release of Service Members From Military Service Obligation After Use of Transferred Post-9/11 Bill Educational Benefits," May 12, 2021.

e. **(Added)(DAF) DAFI 36-2670, *Total Force Development*, dated 25 June 2020, Chapter 6, paragraph 6.11.**

1.4. SUMMARY OF CHANGE 1.

The changes to this issuance:

a. Implement Section 3 of Public Law 117-297, also known and referred to as "the Veterans Eligible to Transfer School (VETS) Credit Act of 2022," which eliminates the requirement for a

Service member to specify the effective period for the transfer of Post-9/11 GI Bill educational benefits.

b. Implement Section 214 of Division U of Public Law 117-328, also known and referred to as "the Consolidated Appropriations Act, 2023," which requires the Department of Veterans Affairs (VA) to evenly distribute all remaining Post-9/11 GI Bill entitlements to the designated dependents that were not allocated before a Service member's death.

SECTION 2: RESPONSIBILITIES

2.1. ASSISTANT SECRETARY OF DEFENSE FOR MANPOWER AND RESERVE AFFAIRS.

Under the authority, direction, and control of the Under Secretary of Defense for Personnel and Readiness, the Assistant Secretary of Defense for Manpower and Reserve Affairs develops and oversees implementation of policy for the Post-9/11 GI Bill.

2.2. DEPUTY ASSISTANT SECRETARY OF DEFENSE FOR MILITARY PERSONNEL POLICY (DASD(MPP)).

Under the authority, direction, and control of the Assistant Secretary of Defense for Manpower and Reserve Affairs, the DASD(MPP):

a. Develops guidance and procedures for the implementation and oversight of the Post-9/11 GI Bill.

b. Coordinates administrative procedures of the Post-9/11 GI Bill with the Department of Veterans Affairs (VA) and other appropriate DoD and intergovernmental agencies, as applicable.

c. Reviews and approves each Military Department plan to use kickers in accordance with the provisions of Section 3316 of the Post-9/11 GI Bill.

d. Establishes the standard data elements needed to administer the Post-9/11 GI Bill.

2.3. DIRECTOR, DEPARTMENT OF DEFENSE HUMAN RESOURCES ACTIVITY.

Under the authority, direction, and control of the Under Secretary of Defense for Personnel and Readiness, the Director, Department of Defense Human Resources Activity ensures the:

a. Director, Defense Manpower Data Center (DMDC):

(1) Replicates Post-9/11 GI Bill eligibility data using the Veterans Affairs and DoD Identity Repository with the VA as needed and specified in agreements between DMDC and the VA by:

(a) Maintaining personnel information the VA needs to determine benefit entitlement.

(b) Maintaining VA payment and usage data for the Post-9/11 GI Bill program.

(2) Replicates Post-9/11 GI Bill usage data electronically with Department of Labor (DOL) as specified in agreements between the DMDC and the DOL.

(3) Maintains personnel information the DOL needs to determine benefit entitlement.

(4) Maintains VA payment and usage data for the Post-9/11 GI Bill program to support the DOL's administration of unemployment compensation for ex-Service members, the Coast Guard, and NOAA Corps.

b. The Defense Personnel Analytics Center performs determinations of cost requirements in support of DoD funding responsibilities for the Post-9/11 GI Bill in accordance with Sections 183 and 2006 of Title 10, U.S.C.

2.4. UNDER SECRETARY OF DEFENSE (COMPTROLLER)/CHIEF FINANCIAL OFFICER, DEPARTMENT OF DEFENSE (USD(C)/CFO).

The USD(C)/CFO:

a. Provides guidance on budgeting, accounting, and funding for the educational benefits program in support of plans established in this issuance, and for investing the available DoD Education Benefits Fund balance.

b. Coordinates with the DASD(MPP) to review and approve the Military Department budget estimates for the supplemental payments in accordance with the provisions of Section 3316 of the Post-9/11 GI Bill.

2.5. SECRETARIES OF THE MILITARY DEPARTMENTS, AND THE COMMANDANT, UNITED STATES COAST GUARD (USCG).

The Secretaries of the Military Departments, and the Commandant, USCG, in implementing the Post-9/11 GI Bill:

a. Provide implementing guidance within their respective components for the administration of the Post-9/11 GI Bill consistent with this issuance and other guidance issued by the DASD(MPP) and the USD(C)/CFO consistent with the needs of the Military Services concerned. This guidance must include implementation of kickers and the transfer of unused educational benefits in accordance with Sections 3316 and 3319 of the Post-9/11 GI Bill and this issuance.

(1) (Added)(DAF) The Assistant Secretary of the Air Force for Manpower and Reserve Affairs (SAF/MR) provides implementing policy for the DAF.

(a) (Added)(DAF) The Deputy Chief of Staff of the Air Force for Manpower, Personnel and Services (AF/A1) through the Director, Force Development (AF/A1D), develops and implements policy, makes decisions regarding exceptions to policy (ETP), and provides program oversight for DAF Total Force (RegAF, USSF, Air Force Reserve, and Air National Guard).

b. Direct that all eligible Service members in the Active and Reserve Components are made aware that they are automatically eligible for Post-9/11 GI Bill educational assistance upon serving the required active duty time, in accordance with Sections 3301 and 3311 of the Post-9/11 GI Bill.

c. Direct that all officers without earlier established eligibility, following commissioning through the Military Service Academies (with the exception of the Coast Guard Academy for individuals who entered into an agreement to service before January 4, 2011) or Reserve Officer Training Corps Scholarship Programs in accordance with Section 2107 of Title 10, U.S.C., understand that their eligible period of active duty for Post-9/11 GI Bill benefits does not begin until they have completed their statutory obligated active duty service. Ensure that such officers are aware that any active duty service after that obligated period of service may qualify as active duty service for Post-9/11 GI Bill eligibility.

d. Direct that all Service members participating in the student loan repayment program in accordance with Chapter 109 of Title 10, U.S.C., are aware and understand that:

(1) Their service in accordance with Chapter 109 of Title 10, U.S.C. does not count as a qualifying active duty service for Post-9/11 GI Bill eligibility.

(2) Any service after that obligated period of service may qualify as active duty service for Post-9/11 GI Bill eligibility.

e. Authorize kickers for recruitment and retention of individuals with critical skills or in programs that are hard to recruit or retain pursuant to Section 3316 of the Post-9/11 GI Bill and in accordance with plans approved by the DASD(MPP) pursuant to Paragraph 2.2.c. of this issuance. Inform the DASD(MPP) of such authorization.

(1) (Added)(DAF) The DAF has not implemented any "kickers" (supplemental educational assistance) for the Post-9/11 GI Bill for Airmen and Guardians, including Regular Air Force, USSF, Air Force Reserve and Air National Guard. (T-0)

f. Budget for and transfer funds to support the kickers, in accordance with this issuance and guidance issued by the USD(C)/CFO.

g. Direct pre-separation counseling on Post-9/11 GI Bill benefits to active duty members and members of the Reserve Components with qualifying active duty service. Document this counseling accordingly.

(1) (Added)(DAF) (1) (Added)(DAF) The Air Force Personnel Center Commander (AFPC/CC) will ensure Service members are counseled (pre-separation or release from RegAF and USSF) on benefits and that counseling is documented on DD Form 2648, Pre-Separation/Transition Counseling Checklist for Service members Separating, Retiring, Released from active duty (REFRAD).

(a) (Added)(DAF) The Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1) and the Air Force Reserve Command (AFRC/A1) will ensure that Guard and Reserve members are counseled on benefits, and where applicable, ensure that counseling is documented on DD Form 2648 and/or other required forms for documentation.

h. Develop and distribute education and training materials to administer the transferability of unused education entitlements to family members to support recruiting and retention in

accordance with this issuance.

i. Manage the maintenance of records for individuals who receive kickers pursuant to Section 3316 of the Post-9/11 GI Bill. Provide those records to the DMDC and the VA.

j. Report all qualifying active duty service time in accordance with the procedures in Volume 1 of DoD Manual 7730.69.

k. Direct use of DoD standard data elements and codes established by Volume 1 of DoD Manual 7730.69 and DoDI 1336.05 when specified for kickers in accordance with this issuance.

(1) (Added)(DAF) The DAF Directorate of Manpower and Personnel Plans and Integration (A1/XIP) will use Department of Defense standard data elements and codes established by DoDI 1336.05, *Automated Extract of Active Duty Military Personnel Records,* as amended, and when specified for GI Bill kickers and DoD Manual 7730.69, Volume 1, *Uniformed Services Human Resources Information System: Main Reporting Requirements*, as amended. Report all qualifying active-duty service time pursuant to DoDM 7730.69, Volume 1.

(Added)(DAF) Note: Failure to adhere to the coding instructions or utilize the codes registered in the Department of Defense Data Element Program will result in the DAF being held accountable for the expenses associated with completing the data interchange conversion.

l. May issue guidance regarding waiver of the military service obligation if the individual revokes all transfers, regardless of whether benefits have been used. Ensure such guidance includes notification to Service members requesting release from a military service obligation that any use of transferred benefits will be treated as an overpayment, subject to debt collection by the VA.

(1) (Added)(DAF)Transferred Benefits Used. Members who wish to request voluntary retirement or separation prior to meeting their Transfer of Education Benefits (TEB) service obligation must request a waiver of the service obligation in conjunction with the request for retirement or separation in accordance with AFMAN36-2100, *Military Utilization and Classification*, Chapter 4. Members must sign a statement of understanding acknowledging that benefits used are subject to recoupment by the VA (the statement must include the estimated amount recoupable).

(a) (Added)(DAF) *Best Interest of the Air Force* approved waivers will result in forfeiture of transferred benefits. As a result, the TEB application will be rejected in the web application and benefits used will be subject to recoupment by the VA.

(b) (Added)(DAF) In accordance with this Instruction, a *Hardship* approved waiver (as determined by the Secretary of the Air Force) will allow retention of transferred benefits. The Defense Manpower Data Center must reflect the appropriate reason for separation as *Hardship* documented on the DD Form 214, *Certificate of Release or Discharge from Active Duty,* with the appropriate Separation Program Designator (SPD) code.

(2) (Added)(DAF) Transfer of Benefits not Used. Members who wish to request voluntary retirement or separation prior to meeting their TEB service obligation may revoke their TEB and request, in writing, removal of their service obligation. (T-1)

Note: Removal requests will not be considered if member has been selected for deployment or permanent change of station. Members requesting retirement must be eligible to request

retirement on the desired retirement date in accordance with DAFI 36-3203, *Service Retirements*. (T-1)

(a) (Added)(DAF) Members must show proof that the transferred education benefits have not been used by dependents and sign a statement of understanding acknowledging that any used benefits not yet reflected in the transfer system of record are subject to recoupment by the Department of Veterans Affairs. (T-1) If a member's removal request is approved, the TEB application will be rejected on the web application and the service obligation removed from the Military Personnel Data System.

(b) (Added)(DAF) Members must request retirement or separation within 30 days of their service commitment removal or they will have their Transfer of Education Benefits application and the associated service obligation reinstated. (T-1)

m. (Added)(DAF) Site Security Management:

(1) (Added)(DAF) AF/A1DLV is the RegAF and USSF Transfer of Education Benefits site security manager with execution responsibility maintained by the Air Force Personnel Center (AFPC/DP3SA).

(2) (Added)(DAF) The Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1) is the Transfer of Education Benefits site security manager for the Air National Guard. This responsibility may be delegated as determined by the Director of the Air National Guard.

(3) (Added)(DAF) The Air Reserve Personnel Center is the Transfer of Education Benefits site security manager for the Air Force Reserve. This responsibility may be delegated as determined by the Chief, Air Force Reserve.

n. (Added)(DAF) Other Administrative Responsibilities:

(1) (Added)(DAF) The Air Force Personnel Center Commander (AFPC/CC), with execution responsibility maintained by the Directorate of Personnel Programs (AFPC/DP3SA):

(a) (Added)(DAF) Validates RegAF and USSF member (active duty only) requests to transfer unused Post-9/11 GI Bill benefits to their eligible dependents.

(b) (Added)(DAF) Maintains RegAF and USSF member Service commitment data, Service remaining requirement data, and all other data requirements required to manage the Post-9/11 GI Bill in the personnel system.

(c) (Added)(DAF) Reviews and updates all accession briefings and curricula with Air Education Training Command and other accession points to ensure accuracy and program intent.

(d) (Added)(DAF) Provides the day-to-day management of the Post-9/11 GI Bill execution.

(e) (Added)(DAF) Establishes a system to process and verify educational incentive and entitlements data identified as incorrect by the DAF, Defense Manpower Data Center, or Department of Veterans Affairs.

(f) (Added)(DAF) Responds to inquiries from DAF agencies, Defense Manpower Data Center, Department of Veterans Affairs, Department of Defense, financial institutions, individual active duty Service members, Veterans, and Congress.

(g) (Added)(DAF) Provides training and reference materials to installation Air and Space Force Education and Training Section personnel and Air Force Recruiting Service.

(h) (Added)(DAF) Ensures accurate Post-9/11 GI Bill information is available to Air Education and Training Command for inclusion in Basic Military Training and other accession point briefings.

(i) (Added)(DAF) Ensures that Service members who have not processed through a Military Entrance Processing Station/Center are briefed on the Post-9/11 GI Bill.

(j) (Added)(DAF) Ensures that Force Development Flight Chiefs at base-level Education and Training Sections perform the following duties:

1. (Added)(DAF) Maintains current educational benefits regulations and other related reference materials.

2. (Added)(DAF) Provides general information on Post-9/11 GI Bill entitlements during in-processing at first permanent duty station.

3. (Added)(DAF) Provides guidance, as needed, to all Service members with inquiries regarding their GI Bill and other educational entitlements.

(2) (Added)(DAF) The Air Reserve Personnel Center Commander (ARPC/CC) with execution responsibility maintained by the Air Reserve Personnel Center Education Branch (ARPC/DPAT):

(a) (Added)(DAF) Provides the day-to-day management of the Post-9/11 GI Bill execution for Air Force Reserve personnel.

(b) (Added)(DAF) Establishes a system to correct and verify educational incentive and entitlements data identified as incorrect by the Air Force, Defense Manpower Data Center or Department of Veterans Affairs.

(c) (Added)(DAF) Responds to inquiries pertaining to programs listed in this policy from DAF agencies, Defense Manpower Data Center, Department of Veterans Affairs, Department of Defense, financial institutions, and individual reserve personnel.

(d) (Added)(DAF) Participates as an active member in the policy formulation process.

(e) (Added)(DAF) Provides training and reference material to the Air Force Reserve Wing Education and Training offices and Air Reserve Personnel Center.

(f) (Added)(DAF) Ensures that Air Force Reserve Wing Education and Training Section at the Military Personnel Flights and Air Reserve Personnel Center (DPSD2) perform the following duties:

1. (Added)(DAF) Maintains current educational benefits regulations and other related reference materials.

2. (Added)(DAF) Provides counseling on Post-9/11 GI Bill entitlements during in-processing, commander's call, newcomer's briefings, mobilization, and demobilization briefings.

3. (Added)(DAF) Provides counseling as needed to all Reservists with inquiries regarding their educational entitlements.

4. (Added)(DAF) In partnership with the Military and Family Readiness Centers, ensures Reservists are counseled on benefits.

(g) (Added)(DAF) Will forward requests for exception to policy to HAF/REP, for decision.

(3) (Added)(DAF) The Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1):

(a) (Added)(DAF) Provides day-to-day management of the Post-9/11 GI Bill implementation policy and procedures for Air National Guard personnel.

(b) (Added)(DAF) Establishes a system to correct and verify educational incentive and entitlements data identified as incorrect by DAF, the Defense Manpower Data Center, or the Department of Veterans Affairs.

(c) (Added)(DAF) Responds to inquiries pertaining to programs listed in this policy from DAF, Defense Manpower Data Center, Department of Veterans Affairs, Department of Defense, financial institutions, and individual Guard personnel.

(d) (Added)(DAF) Participates as an active member in the policy formulation process.

(e) (Added)(DAF) Will forward requests for exception to policy to NGB/A1Y, for decision.

2.6. THE SURGEON GENERAL (USPHS CORPS) AND THE SECRETARY OF COMMERCE (NOAA CORPS).

The Surgeon General, USPHS Corps, and the Secretary of Commerce, NOAA Corps, in implementing the Post-9/11 GI Bill:

a. Provide implementing guidance within their respective components for the administration of the Post-9/11 GI Bill consistent with this issuance and other guidance issued by the DASD(MPP) consistent with the needs of the uniformed service concerned. This guidance must include the transfer of unused educational benefits in accordance with Section 3319 of the Post-9/11 GI Bill, and this issuance.

b. Direct that all eligible members are made aware that they are automatically eligible for Post-9/11 GI Bill educational assistance upon serving the required active duty time, in accordance with Sections 3301 and 3311 of the Post-9/11 GI Bill.

c. Direct pre-separation counseling on Post-9/11 GI Bill benefits to active duty members and members of the Reserve Components with qualifying active duty service. Document this counseling accordingly.

d. Develop and distribute education and training materials within their respective components to administer the transferability of unused education entitlements to family members to support recruiting and retention in accordance with this issuance.

e. Report all qualifying active duty service time in accordance with the procedures in Volume 1 of DoD Manual 7730.69

f. May issue guidance regarding waiver of the service obligation if the individual revokes all transfers, regardless of whether benefits have been used. Ensure such guidance includes notification to members requesting release from a service obligation that any use of transferred benefits will be treated as an overpayment, subject to debt collection by the VA.

SECTION 3: PROCEDURES

3.1. GENERAL ELIGIBILITY.

The VA is responsible for determining the eligibility for, and administration of, the Post-9/11 GI Bill. Policies and procedures for usage of Post-9/11 GI Bill benefits are available from the VA. Those policies and procedures are codified in Part 21 of Title 38, Code of Federal Regulations, and presented and updated at https://benefits.va.gov/gibill/. **(Added)(DAF) The term Armed Services does not include the Individual Ready Reserve unless otherwise noted. Enrollment in the Post-9/11 GI Bill is based upon qualifying Service after 10 September 2001. There is no requirement for the Service member to sign DoD Form 2366 to enroll, nor is there a corresponding reduction in pay to participate in the program. Generally, to be eligible for the Post-9/11 GI Bill, Airmen must serve for at least 30 continuous days when there is a discharge due to a Service-connected disability, or an aggregate period ranging from 90 days to 36 months or more. (T-0) When a Service member wants to use Post-9/11 GI Bill benefits, they must contact the VA. (T-0)**

a. (Added)(DAF) Eligibility Exclusions.

The following periods of active duty Service do not qualify for the purpose of establishing eligibility for the Post-9/11 GI Bill (T-0):

(1) (Added)(DAF) Regular Air Force Service completed on or before 10 September 2001. (T-0)

(2) (Added)(DAF) The Active Duty Service Commitment for commissioning from a Service academy. (T-0)

(3) (Added)(DAF) The Active Duty Service Commitment for a Reserve Officer Training Corps Scholarship. (T-0)

(4) (Added)(DAF) Service under Chapter 109 of Title 10, U.S.C. counted for those participating in the Educational Loan Repayment Programs. (T-0)

(5) (Added)(DAF) Full-time assignment by the Armed Forces to a civilian institution to pursue a program of education that was substantially the same as programs of education offered to civilians. (T-0)

(6) (Added)(DAF) Service as a cadet or midshipmen in one of the Service academies (does not include Academy Preparatory School). (T-0)

(7) (Added)(DAF) Active duty for Initial Entry Training pursuant to enlistment in the Army National Guard, Air National Guard, Army Reserve, Naval Reserve, Air Force Reserve, Marine Corps Reserve, or Coast Guard Reserve. (T-0)

(8) (Added)(DAF) Service that was terminated because a member was a minor, was erroneously enlisted, or received a defective enlistment agreement. (T-0)

(9) (Added)(DAF) A period of Selected Reserve Service used to establish eligibility for a Defense Intelligence Senior Executive Service position under Title 10 U.S.C. § 1606, D*efense Intelligence Senior Executive Service*, or an Intelligence Senior Level position under 10 U.S.C. § 1607, *Intelligence Senior Level Positions.* (T-0)

(10) (Added)(DAF) A period of Selected Reserve Service used to establish eligibility for entitlements under Chapter 30 of the Title 38, *All Volunteer Force Educational Assistance Programs*. (T-0)

(11) (Added)(DAF) Annual training conducted under authority of Title 10 U.S.C. § 10147, *Ready Reserve: Training Requirements*, or Title 10 U.S.C. § 12301, *Reserve Component Generally*, paragraph (b). (T-0)

(12) (Added)(DAF) For purposes of Post-9/11 GI Bill, Service in the Individual Ready Reserve is not qualifying Service for either determination of eligibility or eligibility to transfer unused Post-9/11 GI Bill benefits. (T-0)

b. (Added)(DAF) Duration of Eligibility. A member's eligibility for Post-9/11 GI Bill entitlement expires at the end of a 15- year period beginning on the member's last date of discharge or release from the Regular Air Force of at least 90 consecutive days (30 days if released or discharged for a Service-connected disability) if discharge or release is prior to 1 January 2013 (eligibility shall not expire for members whose last discharge or release is on or after 1 January 2013). Deputy Chief of Staff of the Air Force for Manpower, Personnel, and Services, Directorate of Force Management Policy, AF/A1D, shall determine the last date of discharge or release, if such date cannot be clearly determined.

c. (Added)(DAF) Benefits for Service members pursuing education on active duty.

(1) (Added)(DAF) Educational assistance is payable under the Post-9/11 GI Bill Program for pursuit of an approved program of education while on active duty.

(2) (Added)(DAF) The amount of educational assistance payable shall be the lesser of the amount of assistance authorized under the Post-9/11 GI Bill, or the established institutional charges for tuition and fees required in similar circumstances of non-Veterans enrolled in the same program.

(3) (Added)(DAF) Concurrent use of Post-9/11 GI Bill and Military Tuition Assistance. A member entitled to basic educational assistance under the Post-9/11 GI Bill who is pursuing education or training, may use, at their discretion, Post-9/11 GI Bill benefits to meet all or a portion of the charges of the educational institution for the education or training that are not paid by military tuition assistance. The Department of Veterans Affairs administers this portion of the Post-9/11 GI Bill Program. Note: Public Law 111-377, Section 111, Bar to Duplication of Certain Educational Assistance Benefits, prohibits crediting a single period of Service to more than one program (Montgomery GI Bill, Post-9/11 GI Bill, Montgomery GI Bill-Selected Reserve, Reserve Education Assistance Program, etc.).

d. (Added)(DAF) Issues related to Service members with Entitlement to Existing Education Programs.

(1) (Added)(DAF) A member who is eligible for both the Post-9/11 GI Bill and any other Department of Veterans Affairs educational assistance program may elect to receive educational assistance under the Post-9/11 GI Bill if the member, as of 1 August 2009:

(a) (Added)(DAF) Is entitled to basic educational assistance under Montgomery GI Bill, and has used, but retains unused, entitlement under that Chapter.

(b) (Added)(DAF) Is entitled to educational assistance under the Educational Assistance Test Program, Montgomery GI Bill-Selected Reserve, or Reserve Education Assistance Program, and has used, but retains unused, entitlement under the applicable program.

(c) (Added)(DAF) Is entitled to basic educational assistance under Montgomery GI Bill but has not used any entitlement under that chapter.

(d) (Added)(DAF) Is entitled to educational assistance under Educational Assistance Test Program, Montgomery GI Bill-Selected Reserve, or Reserve Education Assistance Program, but has not used any entitlement under such chapter.

(e) (Added)(DAF) Is a member of the Armed Forces who is eligible for receipt of basic educational assistance under Montgomery GI Bill and is making contributions towards Montgomery GI Bill.

(f) (Added)(DAF) Is a member of the Armed Forces who is not entitled to basic educational assistance under Montgomery GI Bill, by reason of an election not to enroll in Montgomery GI Bill; and as of the date of the Member's election to use Post-9/11 GI Bill benefits, meets the requirements for entitlement to educational assistance under the Post-9/11 GI Bill.

(g) (Added)(DAF) Is entitled to basic educational assistance under the Post-Vietnam Era Veterans Educational Assistance Program. Service members who did not open Post-Vietnam Era Veterans Educational Assistance Program accounts may be eligible for benefits based on qualifying active duty Service under the Post-9/11 GI Bill.

(h) (Added)(DAF) As of the date of the member 's application to use Post-9/11 GI Bill benefits, meets the requirements for entitlement to educational assistance under the Post-9/11 GI Bill.

(2) (Added)(DAF) The method and process of making the election to use Post-9/11 GI Bill benefits will be determined by the Department of Veterans Affairs using Veterans Affairs Form 22-1990, *Application for VA Education Benefits*. (T-0)

(3) (Added)(DAF) An election to convert from Montgomery GI Bill (Chapter 30) to the Post-9/11 GI Bill (Chapter 33) is irrevocable and will be governed by the Department of Veterans Affairs. This includes Service members who originally converted from Post-Vietnam Era Veterans Educational Assistance Program to Montgomery GI Bill.

(4) (Added)(DAF) A member entitled to educational assistance under the Post-9/11 GI Bill who is also eligible for educational assistance under the Montgomery GI Bill, Chapters 31, 32, or 35 of Title 38, U.S.C., Montgomery GI Bill–Selected Reserve, Reserve Education

Assistance Program, or the provisions of Public Law 96-449, *Hostage Relief Act of 1980*, may not receive assistance under two or more such programs concurrently, but shall elect (in such form and manner as the Secretary of Veterans Affairs may prescribe) under which chapter or provisions to receive educational assistance.

(5) (Added)(DAF) Public Law 111-377, *Post-9/11 Veterans Educational Assistance Improvements Act of 2010*, bars duplication of certain educational assistance benefits based on a single event or period of Service.

(a) (Added)(DAF) An individual with qualifying Service in the Armed Forces that establishes eligibility on the part of such individual for educational assistance under this chapter, Chapter 30 or 32 of Title 38, and Chapter 1606 or 1607 of Title 10, shall elect (in such form and manner as the Secretary of Veterans Affairs may prescribe) under which authority such service is to be credited.

(b) (Added)(DAF) This amended Title 38 U.S.C. § 3322, by adding subsection (h) bars duplication of eligibility based on a single event or period of Service. Because of this addition, individuals (entering the Regular Air Force on or after 1 August 2011) cannot use the same period of Service to establish eligibility for the Post-9/11 GI Bill and the Montgomery GI Bill. (T-0)

(c) (Added)(DAF) A single event or period of Service for individuals entering the Service after 31 July 2011 is from the date entered the Regular Air Force to the date of separation. Enlisted personnel who reenlist establish a second period of Service. During a single event or period of Service, enrollment in the Montgomery GI Bill renders the member ineligible for the Post-9/11 GI Bill. Enrolling in the Montgomery GI Bill is distinctly different than signing up via Department of Defense Form 2366, *Montgomery GI Bill Act of 1984 (MGIB) Basic Enrollment*. Enrollment in the Montgomery GI Bill or Post-9/11 GI Bill is established when members complete and submit Veterans Affairs Form 22-1990. Members intending to transfer Post-9/11 GI Bill education benefits to eligible dependents who have "enrolled" in the Montgomery GI Bill are ineligible to transfer benefits (within a single event or period of Service).

e. (Added)(DAF) Treatment of Certain Contributions Under Montgomery GI Bill and Reserve Education Assistance Program.

(1) (Added)(DAF) Service members who participated in the Buy-Up provision of Montgomery GI Bill or Reserve Education Assistance Program will not receive the Buy-Up amount if they elect to use benefits under the Post-9/11 GI Bill. There is no provision to allow for a refund of any Buy-Up contribution. (T-0)

(2) (Added)(DAF) There is no provision to allow for increasing the amount allowed for Post-9/11 GI Bill through use of a Buy-Up.

f. (Added)(DAF) Montgomery GI Bill Benefits Exhaustion. Service members who have exhausted their Montgomery GI Bill benefits can qualify for an additional 12 months of benefits under the Post-9/11 GI Bill based on Department of Veterans Affairs policy.

g. (Added)(DAF) Montgomery GI Bill Conversion.

For members eligible for Montgomery GI Bill who make an election to convert to the Post-9/11 GI Bill, the number of months of entitlement to educational assistance under the Post-9/11 GI Bill shall be the number of months equal to the number of months of unused entitlement under Montgomery GI Bill as of the date of the election. (T-0) Members are encouraged to assess their educational goals to determine the time they select Post-9/11 GI Bill benefits. Example: A member who used 25 months of Montgomery GI Bill (Chapter 30), converts to the Post-9/11 GI Bill; he/she has 11 months of remaining benefits under the Post-9/11 GI Bill. Alternatively, a member with 11 months of Montgomery GI Bill may choose to exhaust those benefits and then apply for an extra 12 months of benefits under the Post-9/11 GI Bill. (T-0)

h. (Added)(DAF) Montgomery GI Bill Conversion - Additional.

In addition to the educational benefits previously described Service members who were eligible for benefits under Montgomery GI Bill, Montgomery GI Bill –Selected Reserve, or Reserve Education Assistance Program, and elect to use benefits under the Post-9/11 GI Bill, will be eligible to receive benefits for on-the-job training, apprenticeship training, correspondence courses, flight training, preparatory courses, and national exams. (T-0) Service members in these circumstances will be paid just like they would have been paid under their GI Bill program (i.e., money paid to them for tuition, not to the school); they will not receive a living allowance but will receive a lump sum books & supplies stipend in an amount equal to $83 for each month (prorated for partial months and benefit level). (T-0) The Department of Veterans Affairs is the sole approval authority in such cases. (T-0)

i. (Added)(DAF) ETP requests pertaining to Guard or Reserve.

Guard and Reserve ETP requests should be routed through the Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1) or Headquarters Reserve Personnel Directorate (HAF/REP) for concurrence /nonconcurrence before being sent to AF/A1D for final approval.

3.2. KICKERS.

a. Enlistment Kickers.

The use of enlistment kickers will be based on the criticality of the skill or the length of enlistment commitment and may be offered in amounts from $150 to $950 per month in increments of $100. Reporting codes for enlistment kickers are listed in Volume 1 of DoD-Manual 7730.69.

b. Affiliation Kickers.

The use of affiliation kickers must be based on the criticality of the skill and/or unit and the length of Selected Reserve commitment, and may be offered in amounts from $150 to $950 per month in increments of $100. If an individual is already eligible for an enlistment kicker, the amount of the affiliation kicker is limited to the amount that would take the total to $950. For individuals who are offered an affiliation kicker on top of an enlistment kicker, the increases above the enlistment kicker will be in $100 increments, not to exceed $950 in total. Reporting

codes for affiliation kickers are the same as the codes for enlistment kickers listed in Volume 1 of 7730.69.

c. Reenlistment Kickers.

The use of reenlistment kickers should be based on the criticality of the skill and may be offered in amounts from $100 to $300 per month in increments of $100, based on length of additional service. Reporting codes for reenlistment kickers are listed in Volume 1 of DoD Manual 7730.69.

d. Payment of Kickers.

The VA pays kickers in conjunction with the monthly stipend paid pursuant to Section 3313(c) of the Post-9/11 GI Bill.

3.3. TRANSFERABILITY OF UNUSED EDUCATION BENEFITS TO FAMILY MEMBERS.

TEB is available to all members of the uniformed services. Any references specifically to "Service members" in this paragraph apply only to individuals in the Military Services; while "member(s)" include those serving in the uniformed services as defined in the Glossary.

a. Overview.

(1) Subject to the provisions of Paragraph 3.3 of this issuance, the Secretary concerned, to promote recruitment and retention in the uniformed services, may permit an individual eligible for Post-9/11 GI Bill educational assistance to elect to transfer to one or more of their eligible family members all or a portion of their entitlement to such assistance. Transferability is neither an entitlement nor a transition or readjustment benefit. The DoD will continue to track recruit quality and retention metrics carefully to adjust policy and force management tools to support any major shifts in retention trends.

(2) The Military Departments will not automatically approve a Service member's request to elect to transfer benefits. Before approving an individual's request to elect to transfer benefits, the Secretary of the Military Department concerned must determine whether the Service member is eligible for retention under the Military Department or Service retention policies (e.g., high-year tenure) and is not precluded by either DoD, Military Department, Service policy, or statute from being retained for 4 additional years from the date of election.

(a) (Added)(DAF) Certification. DAF certifying officials will verify that the member requesting an education benefits transfer is in compliance with the transferability policy provisions.

1. (Added)(DAF) The certifying official for RegAF and USSF members is the Air Force Personnel Center (AFPC/DP3SA). Waiver requests must be submitted to A1DLV and certified by The Air Force Personnel Center (AFPC/DP3SA). (T-1)

2. (Added)(DAF) The certifying official for Air Force Reserve members is the Air Force Reserve Command (AFRC/A1), with execution responsibility maintained by the Air Reserve Personnel Center Education Branch (ARPC/DPAT). (T-1)

3. (Added)(DAF) The certifying official for Air National Guard members will be the Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1). (T-1)

4. (Added)(DAF) All personnel identified as certifying officials will need to be identified to the Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1). (T-1)

(3) Recipients of the Purple Heart are eligible to transfer unused Post-9/11 GI Bill education benefits to one or more eligible family members, regardless of whether the Service member concerned has already served 6 years of service in the Military Services and entered into an agreement to serve a minimum of 4 additional years as a uniformed services member. All other requirements concerning the transferability of unused Post-9/11 GI Bill educational benefits in law and this policy apply, including the requirement that eligibility is limited to Service members serving on active duty or in the Selected Reserve on the date of election.

(a) (Added)(DAF) In accordance with DoD Manual 1348.33, Manual of Military Decorations and Awards: DoD-Wide Personal Performance and Valor Decorations, Volume 3, Paragraph 3.7.c., Service members awarded the Purple Heart are eligible to transfer unused Post-9/11 GI Bill education benefits to qualifying family members. This guidance is effective as of 31 August 2018.

(4) Members may submit requests to transfer education benefits only through the DMDC milConnect Web application at https://milconnect.dmdc.osd.mil/milconnect. The date of this action is considered to be the date of member's TEB election.

(5) (Added)(DAF) The Department of Veterans Affairs will verify that members are entitled to the total number of months of education benefits that a member requests to transfer. In the event a member requested to transfer more months of Post-9/11 GI Bill benefits than entitled, the member may, within 30-days from date of notification from the Department of Veterans Affairs (Certificate of Eligibility required), revoke the transfer of unused education benefits and rescind the additional Service obligation unless already serving on a term of reenlistment or dependents have utilized transferred education benefits. (T-1) If the member elects to modify the number of months transferred to match the total number of months the Department of Veterans Affairs determined is available, the original additional Service commitment will remain in effect. (T-1)

(6) (Added)(DAF) Service members electing to transfer Post-9/11 GI Bill education entitlements are making an irrevocable election to convert from the Montgomery GI Bill (if eligible) to the Post-9/11 GI Bill. (T-1) Service members concurrently eligible for both Chapter 30 and Chapter 1606 of the Montgomery GI Bill must choose to relinquish one or the other when electing to convert to Post 9/11 GI Bill. (T-0) Service members must not continue to utilize the relinquished chapter; however, they may retain eligibility for the chapter they have not relinquished. (T-0) Continued use of the relinquished education benefit after Transfer of Education Benefits approval will NOT result in Active Duty Service Commitment or application removal. (T-1)

b. General Eligibility.

(1) Any Service member on or after August 1, 2009, who is entitled to the Post-9/11 GI Bill at the time of the approval of their request to transfer that entitlement under this section, may request to transfer that entitlement provided they have at least 6 years of total creditable service in the Military Services (active duty or Selected Reserve), on the date of election.
(Added)(DAF) Service members may request certification of Post-9/11 GI Bill eligibility from the Department of Veterans Affairs website prior to requesting a Transfer of Education Benefits.

(2) Only Service members with at least 6 years of total creditable service in the Military Services (active duty service and/or Selected Reserve), will be eligible to transfer education benefits to eligible family members.

(3) The determination of members' total years of creditable service will be based on the date of the member's TEB application, not the date the request is approved by the respective Military Department, NOAA Corps, or USPHS Corps. Service performed in the Uniformed Services University of the Health Sciences will not be included in the calculations for 6 years of eligibility, pursuant to Section 2126 of Title 10, U.S.C.

(4) The member transferring educational benefits must agree to serve 4 additional years in the Military Services, NOAA Corps, or USPHS Corps from the date of election, with no break in active or Selected Reserve service for greater than 24 hours, other than to participate in CIP. This includes the Selected Reserve of the Ready Reserve Corps of the USPHS Corps. Eligibility does not guarantee approval. Members must be eligible to be retained for 4 years from the date of election and not be precluded, before approval, by either standard Service or DoD policy or statute. Members who have qualified for retirement and who wish to transfer benefits will incur a 4-year additional service obligation.

(a) Service members who have not applied for TEB, and who are either on limited duty, or processing through the Disability Evaluation System (DES) in accordance with DoDI 1332.18, or both, must wait until the process is complete before applying for TEB. If found fit and returned to duty, through the DES, the Service member will comply with the standard TEB application procedure.

(b) Service members who previously applied to TEB, but were denied due to insufficient retainability as a result of being on either limited duty, or processing through the DES, or both, and are later cleared to re-enlist, must submit a new application to TEB once they are found fit and returned to duty, and commit to a 4-year service obligation from the date of the new application.

(c) Service members who have been approved to TEB and have been subsequently found fit for duty and returned to duty may keep their TEB and fulfill their currently approved TEB obligation date.

(d) Service members participating in a CIP are not eligible to transfer educational benefits while in that status.

(e) Some Purple Heart recipients will fit the criteria in Paragraph 3.3.b.(4), but it is not applicable to them. Purple Heart recipients are eligible to TEB provided they are still serving

on active duty or in the Selected Reserve, regardless of whether they are on limited duty or processing through the DES.

(f) **(Added)(DAF) Wounded Warriors. The 4-year Active Duty Service Commitment may be waived for Service members with at least six (6) years of Service, is coded in the Military Personnel Data System as a Wounded Warrior and has an approved Transfer of Education Benefits application prior to being placed in the Wounded Warrior program. (T-1)**

c. Eligible Family Members.

(1) An individual approved to transfer an entitlement of educational assistance in accordance with Paragraph 3.3. of this issuance may transfer that entitlement to their spouse, to one or more of their children, to one or more foster children or legal wards that have been living with the Service member pursuant to a court order for at least 12 consecutive months, or to a combination of their spouse and one or more other eligible family members. Confirmation of family members will be made using the Defense Enrollment Eligibility Reporting System. Eligible family members are identified as such in the DMDC milConnect TEB Web application.

(a) **(Added)(DAF) For eligibility under this section, the term "child" means an unmarried dependent under twenty-three years of age.**

(2) Once an individual has designated a child as a transferee, a child's subsequent marriage will not affect their eligibility to receive the educational benefit. However, the individual retains the right to revoke or modify the transfer at any time. Pursuant to Section 3319 of the Post-9/11 GI Bill, transferred entitlement may not be treated as marital property, or the asset of a marital estate, subject to division in a divorce or other civil proceeding.

(3) Once an individual has designated a spouse as a transferee, a subsequent divorce will not affect the transferee's eligibility to receive educational benefits. However, the individual retains the right to revoke or modify the transfer at any time. Pursuant to Section 3319 of the Post-9/11 GI Bill, transferred entitlement may not be treated as marital property, or the asset of a marital estate, subject to division in a divorce or other civil proceeding.

d. Months of Transfer.

Months transferred must be whole months greater than 0. The number of months of benefits transferred by an individual in accordance with this issuance must not exceed the lesser of:

(1) The months of Post-9/11 GI Bill unused benefits available. **(Added)(DAF) The amount of unused benefits remaining is determined by the Department of Veterans Affairs.**

(2) 36 months.

(3) **(Added)(DAF) A member must transfer at least one month to have a fully executed transfer of benefits. While in the Armed Forces, members use the Transfer of Education Benefits website (https://milconnect.dmdc.osd.mil/milconnect/) to designate, modify, and revoke a Transfer of Education Benefits request. After leaving the Armed**

Forces, members can provide a future effective date for use of transfer of education benefits, modify the number of months transferred, or revoke entitlement transferred via the Transfer of Education Benefits website. Note: After separating from the Armed Forces individuals cannot designate new dependents to receive transferred entitlement or amend the effective date of the initial transfer of entitlement to an earlier date (a limited exception is provided for in the Post-9/11 GI Bill, § 3319 upon the death of the originally designated dependent).

e. Transferee Usage.

(1) Policies and procedures for a family member to use the Post-9/11 GI Bill transferred educational benefits are the responsibility of the VA. These policies and procedures are codified in Part 21 of Title 38, Code of Federal Regulations, and presented and updated at https://benefits.va.gov/gibill.

(2) After approval of the TEB request, commencement of use by a family member is subject to these conditions:

(a) A spouse may start to use the benefit only after the individual making the transfer has completed at least 6 years of service in the uniformed services.

(b) A child who has either completed the requirements of a secondary school diploma (or equivalency certificate), or reached the age of 18, may start to use the benefit after the individual making the transfer:

1. Has completed at least 10 years of service in the Military Services, NOAA Corps, or USPHS Corps; or

2. Is separated for one of the reasons referred to in Paragraph 3.3.h. of this issuance.

(c) A spouse or child of a Service member who has committed to 4 years of additional service and has transferred the benefit may continue to receive the benefit while the Service member is participating in a CIP.

(3) The service requirements under Paragraph 3.3.e. are not applicable to transferees designated as Purple Heart recipients.

f. Designation of Transferee.

(1) An individual transferring an entitlement to educational assistance under Paragraph 3.3. of this issuance will, through notification to the Secretary concerned:

(a) Designate the family member or members to whom such entitlement is being transferred.

(b) Designate the number of months of such entitlement to be transferred to each family member. Members are strongly encouraged to:

1. Designate at least 1 month of such entitlement to each eligible family

member before separation or retirement.

2. Allocate all of their unused months of education benefits to their dependents.

(1) Service members must revisit the DMDC milConnect TEB Web application at https://milconnect.dmdc.osd.mil/milconnect, to check the status of their submission and the TEB service obligation end date. Service members that do not have a DMDC approval letter posted at this site have not received approval to transfer their education benefits.

g. Time for Transfer, Revocation, and Modification.

(1) Time for Transfer.

(a) An individual approved to transfer entitlement to educational assistance under Paragraph 3.3. of this issuance may transfer such entitlement to the individual's family member only while serving in the Military Services (active duty or Selected Reserve), NOAA Corps, or USPHS. An individual may not normally add family members after retirement or separation from the uniformed services; a limited exception is provided for in Section 3319(k) the Post-9/11 GI Bill, upon the death of the originally designated family member.

(b) Members are strongly advised to allocate all of their unused months of education benefits to their dependents before retirement or separation from the uniformed services.

(c) If an individual approved to transfer entitlement dies with remaining untransferred entitlements after designating a transferee or transferees but before transferring all of such entitlements, the VA will transfer the remaining untransferred entitlement of the individual by evenly distributing the amount of all remaining untransferred entitlement between the designated transferees. This applies to an eligible individual who dies on or after November 1, 2018.

(2) Addition, Modification or Revocation.

(a) An individual transferring entitlement in accordance with this section may modify or revoke the transfer at any time for any unused portion of the entitlement transferred.

1. An individual may add new family members, modify the number of months of the transferred entitlement for existing family members, or revoke transfer of entitlement while serving in the uniformed services.

2. An individual may not normally add family members after retirement or separation from the Military Services, NOAA Corps, or USPHS Corps. However, after retirement or separation, an individual may modify the number of months of the transferred entitlement (i.e., previously approved allocation of unused benefits); distribute unallocated and unused months of benefits (i.e., months the individual has not transferred or used); or revoke transfer of entitlement for those family members who have received transferred benefits before separation or retirement.

(b) The modification or revocation of the transfer of entitlement will be made by submitting notice of the action to both the Secretary concerned and the Secretary of Veterans Affairs. Additions, modifications, or revocations made, both while in the Military Services, NOAA Corps, or USPHS Corps, and after separation or retirement, will be made through the

DMDC milConnect Web application at https://milconnect.dmdc.osd.mil/milconnect.

(c) **(Added)(DAF) If a member transfers months and then revokes the transfer(s), the member making the transfer will be liable for the amount of overpayment (if applicable). (T-0) The Department of Veterans Affairs is responsible for recouping overpayment of these benefits. (T-0)**

(d) **(Added)(DAF) Active Duty Service Commitment. In accordance with Air Force Manual 36-2100, *Military Utilization and Classification*, revocation of transferred benefits does not cancel the member's Active Duty Service Commitment.**

h. Failure to Complete Service Agreement.

(1) If an individual transferring entitlement fails to complete the service agreed to consistent with the terms of the agreement, including any Service member requesting release from a military service obligation, the amount of any transferred entitlement that is used as of the date of such failure, or release, will be treated as an overpayment of educational assistance and will be subject to collection by the VA.

(a) (Added)(DAF) Members who separate, retire, or are released from the Armed Forces prior to completion of the agreed upon additional Service commitment, and who do not fit exceptions outline in this instruction, will have their transfer of education benefits application rejected in the Defense Manpower Data Center Transfer of Education Benefits web application. (T-0) Additionally, their transfer of education benefits will be revoked by the Department of Veterans Affairs. (T-0) Benefits already used by a dependent will be recouped by the Department of Veterans Affairs. (T-0)

1. (Added)(DAF) If the individual was a member of the DAF, the member may join a Selected Reserve unit (i.e., Palace Chase), with no break in Service, and regain the authority to transfer benefits if the member agrees to serve at least the remaining length of time which was not served under the original agreement. (T-1)

2. (Added)(DAF) If the individual was a member of the Selected Reserve, the member may join the active component, with no break in Service, and regain the authority to transfer benefits if the member agrees to serve at least the remaining length of time which was not served under the original agreement. (T-1)

(2) The Service member will be considered to have completed their previously approved TEB-related service agreement upon:

(a) Their death.

(b) Discharge or release from active duty or the Selected Reserve, with an honorable discharge, for a medical condition that pre-existed their service and was not service-connected.

(c) Discharge or release from active duty or the Selected Reserve for hardship with an honorable discharge, as determined by the Secretary concerned.

(d) Discharge or release from active duty or the Selected Reserve, with an honorable

discharge, for a physical or mental condition, not a disability that did not result from their willful misconduct, but did interfere with the performance of duty.

(e) Discharge or release from active duty or the Selected Reserve, with an honorable discharge, for an unfitting medical condition(s) incurred or aggravated in the line of duty as determined in accordance with DoDI 1332.18 (with a medical separation or retirement order).

(f) Discharge or release from active duty or the Selected Reserve, with an honorable discharge, due to reduction in force or other force shaping initiative resulting from a decision by the Secretary concerned.

(g) Discharge or release from active duty or the Selected Reserve, with an honorable discharge due to twice failing to be selected for promotion as a commissioned officer on active duty or Selected Reserve.

1. Officers not offered selective continuation will have the TEB obligation end date adjusted to their separation or retirement date (if an officer has not already fulfilled their TEB obligation end date of 4 years).

2. Officers offered selective continuation who accept selective continuation will have the TEB obligation end date adjusted to their new selective continuation separation or retirement date (if an officer has not already fulfilled their TEB obligation end date of 4 years).

3. Officers offered selective continuation but who reject selective continuation will have the TEB rejected (if officer has not already fulfilled the TEB obligation of 4 years) or does not affiliate directly into the Selected Reserve to complete the TEB obligation, with no break in service between active duty and Selected Reserve. The amount of any transferred entitlement that is used as of the date of such failure must be treated as an overpayment of educational assistance and will be subject to collection by the VA.

(h) Failure to be selected for promotion as an enlisted Service member and being separated under Service high-year tenure or retention control point policies (or a change in these policies) unless separated at high-year tenure or retention control point subsequent to reduction in grade through non-judicial punishment, administrative demotion, or a court-martial.

1. A Service member with a high-year tenure or a retention control point mandatory separation/retirement date adjustment, due to Service-mandated change (not due to fault of Service member), will have the TEB obligation end date adjusted to the new retention control point or high-year tenure mandatory separation/retirement date.

2. A Service member with a high-year tenure or a retention control mandatory separation/retirement date adjustment due to fault of the Service member (e.g., non-judicial punishment, administrative demotion, or court-martial) will not have the TEB obligation end date adjusted to the new high-year tenure or retention control point mandatory separation/retirement date.

(i) For Selected Reserve officers required by Service policy to participate in a selection board to maintain a paid billet:

1. Failure to be selected (determined by the Secretary concerned to not be due to the fault of Service member) will have the TEB obligation end date adjusted to the date the Service member is transferred to non-pay status.

2. Selected Reserve officers (determined by the Secretary concerned) who have not fully participated in the selection board process, or who do not make a good faith effort to maintain a paid billet, will not have the TEB obligation end date adjusted to the date the Service member is transferred to a non-pay status.

(j) A Service member who has transferred Post-9/11 GI Bill educational benefits to an eligible family member pursuant to Section 3319 of the Post-9/11 GI Bill, and has not yet completed their 4-year service obligation, who enters into a CIP, will have their obligation tolled until the Service member has returned to active service in accordance with the CIP. The TEB obligation end date will be adjusted to the remaining service obligation owed under the TEB obligation, due to the tolled period from the Service member's participation in CIP. Participation in a CIP will not be considered a failure to complete the service obligation resulting in the loss of transferability.

(3) All requests and transactions for individuals who remain in the uniformed services will be completed through the DMDC milConnect Web application https://milconnect.dmdc.osd.mil/milconnect. The TEB Beneficiary Guide maintained on that site will provide instruction for enrollment, verification, additions, changes, and revocations. Modifications or revocations after separation from the uniformed services will be accomplished through the DMDC milConnect Web application at https://milconnect.dmdc.osd.mil/milconnect. **(Added)(DAF) Service members are responsible for correcting inaccurate information.**

(4) The Secretary concerned will issue guidance to administer the transferability of unused education entitlements to family members in accordance with this issuance. Such guidance will specify:

(a) The documentation and verification of the additional service commitment authorizing the transferability of education benefits pursuant to Section 3319 of the Post-9/11 GI Bill.

(b) The manner of determining eligibility to authorize the transfer of education benefits in accordance with this issuance.

(1) (Added)(DAF) RegAF and USSF officials will administer the TEB program in accordance with this instruction and the applicable Post-9/11 GI Bill Personnel Services Delivery Guide (PSDG) published by the Air Force Personnel Center.

ALEX WAGNER
Assistant Secretary
(Manpower and Reserve Affairs)

GLOSSARY

G.1. ACRONYMS.

ACRONYM	MEANING
Added)(DAF) AFRC/A1	**Air Force Reserve Director, Manpower, Personnel, and Services**
(Added)(DAF) AF/A1	**Deputy Chief of Staff of the Air Force for Manpower, Personnel, and Services**
(Added)(DAF) AF/A1D	**Deputy Chief of Staff of the Air Force for Manpower, Personnel, and Services, Directorate of Force Development**
(Added)(DAF) AF/A1DLV	**Air Force Directorate of Force Development, Learning Division, Voluntary Education Programs**
(Added)(DAF) AFI	**Air Force Instruction**
(Added)(DAF) AFPC/CC	**Commander, Air Force Personnel Center**
(Added)(DAF) AFPC/DP3SA	**Air Force Personnel Center, Special Programs Branch**
(Added)(DAF) ARPC/DPAT	**The Air Reserve Personnel Center, Education and Incentives Division**
ARPC/DPSD2	**The Air Reserve Personnel Center Division of Military Personnel**
CIP	Career Intermission Program
(Added)(DAF) DAFI	**Department of the Air Force Instruction**
DASD(MPP)	Deputy Assistant Secretary of Defense for Military Personnel Policy
DES	Disability Evaluation System
DMDC	Defense Manpower Data Center
DoDI	DoD instruction
DOL	Department of Labor
(Added)(DAF) HAF/REP	**Air Force Reserve, Director of Personnel**
(Added)(DAF) NGB/A1	**Air National Guard, Director, Manpower, Personnel, and Services**
(Added)(DAF) NGB/A1Y	**Air National Guard, Director of Manpower, Personnel, and Services (NGB/A1), Division of Retention**
NOAA Corps	National Oceanic and Atmospheric Administration Commissioned Officer Corps
(Added)(DAF) PSDG	**Personnel Services Directory Guide**
(Added)(DAF)	**Separation Program Designator**

SPD	
(Added)(DAF) SF/S1	**Space Force Deputy Chief of Space Operations for Human Capital**
TEB	transferability of educational benefits
U.S.C.	United States Code
USCG	United States Coast Guard
USD(C)/CFO	Under Secretary of Defense (Comptroller)/Chief Financial Officer, Department of Defense
USPHS Corps	Commissioned Corps of the U.S. Public Health Service
VA	Department of Veterans Affairs

G.1. DEFINITIONS.

Unless otherwise noted, these terms and their definitions are for the purpose of this issuance.

TERM	DEFINITION
active duty	Defined in Section 3301 of the Post-9/11 GI Bill
affiliation kicker	Described in 3316 of the Post-9/11 GI Bill, supplemental educational assistance the Secretary of a Military Department may offer to the monthly amount of educational assistance otherwise payable to an individual pursuant to Section 3313 of the Post-9/11 GI Bill, to a Service member who is separating honorably from a regular component and who agrees to serve in the Selected Reserve in a skill, specialty, or unit in which there is a critical shortage of personnel or for which it is difficult to recruit and/or retain.
(Added)(DAF)buy up	**Anyone eligible to use the Montgomery GI Bill benefit who also contributes up to $600 during active duty will receive an additional monthly payment on top of their MGIB benefits. This buy-up program only applies to Montgomery GI Bill recipients.**
creditable service	Active Federal service or qualifying years computed pursuant to Section 12732 of Title 10, U.S.C. (50 points or more of service for a full Reserve Component year).
enlistment kicker	Described in 3316 of the Post-9/11 GI Bill, supplemental educational assistance the Secretary of a Military Department may offer to the monthly amount of educational assistance otherwise payable to an individual pursuant Section 3313 of Title 38, U.S.C., who initially enlists in a regular component in a skill or specialty in which there is a critical shortage of personnel or for which it is difficult to recruit.
family member	A spouse or child as defined and described in Section 1072 of Title 10, U.S.C. and Section 3319(c) of the Post-9/11 GI Bill, who is enrolled in the Defense Enrollment Eligibility Reporting System.
force shaping initiative	An action taken to implement a decision made by the Secretary of the Military Department concerned to restructure a Military Service.
Individual Ready Reserve	Defined in Section 10144 of Title 10, U.S.C.

kickers	As described in Section 3316 of the Post-9/11 GI Bill supplemental educational assistance that may be offered by a Secretary concerned to the monthly amount of educational assistance otherwise payable to an individual pursuant to Section 3313 of Title 38, U.S.C.
Military Services	The United States Army, the United States Navy, the United States Air Force, the United States Marine Corps, the United States Space Force, and the United States Coast Guard.
(ADDED)(DAF) Palace Chase	**Palace Chase allows an active duty member to convert part of their remaining commitment and transfer to the Air National Guard or Reserve.**
Purple Heart recipient	A Service member who was awarded the Purple Heart award in accordance with Volume 3 of DoD Manual 1348.33.
reenlistment kicker	Described in Section 3316 of the Post-9/11 GI Bill-supplemental educational assistance a Secretary concerned may offer to the monthly amount of educational assistance otherwise payable to an individual pursuant to Section 3313 of the Post-9/11 GI Bill, to a member who, after completing 5 or more years of continuous service, signs an agreement to remain on active duty for a period of at least 2 years.
Secretary concerned	For a member of the Army, the Navy, the Air Force, the Space Force, the Marine Corps, or the USCG when it is operating as a Service of the Department of the Navy, the term means the Secretary of the Military Department with jurisdiction over that Service member. For a member of the USCG when the USCG is operating as a Service of the Department of Homeland Security, the term means the Secretary of Homeland Security. For a member of the USPHS Corps, the term means the Surgeon General. For a member of the NOAA Corps, the term means the Secretary of Commerce.
Selected Reserve	Those units and individuals within the Ready Reserve designated by their respective Services and approved by the Joint Chiefs of Staff as so essential to initial wartime missions that they have priority over all other reserves.

Service member	An individual serving on active duty or in the Selected Reserve. Does not include other members of the Ready Reserve (such as the Individual Ready Reserve, participants in the CIP, standby Reserve, or retired Service members, unless they are serving on active duty).
tolled	To delay, suspend, or hold off the effect of a service obligation resulting from the transfer of education benefits due to participation in the CIP.
uniformed services	As defined at Section 101(a)(5) of Title 10, U.S.C., this includes the Military Services, the NOAA Corps, and the USPHS Corps.
Secretary concerned	For a member of the Army, the Navy, the Air Force, the Space Force, the Marine Corps, or the USCG when it is operating as a Service of the Department of the Navy, the term means the Secretary of the Military Department with jurisdiction over that Service member. For a member of the USCG when the USCG is operating as a Service of the Department of Homeland Security, the term means the Secretary of Homeland Security. For a member of the USPHS Corps, the term means the Surgeon General. For a member of the NOAA Corps, the term means the Secretary of Commerce.
Selected Reserve	Those units and individuals within the Ready Reserve designated by their respective Services and approved by the Joint Chiefs of Staff as so essential to initial wartime missions that they have priority over all other reserves.
Service member	An individual serving on active duty or in the Selected Reserve. Does not include other members of the Ready Reserve (such as the Individual Ready Reserve, participants in the CIP, standby Reserve, or retired Service members, unless they are serving on active duty).

tolled	To delay, suspend, or hold off the effect of a service obligation resulting from the transfer of education benefits due to participation in the CIP.
uniformed services	As defined at Section 101(a)(5) of Title 10, U.S.C., this includes the Military Services, the NOAA Corps, and the USPHS Corps.

REFERENCES

Code of Federal Regulations, Title 38, Part 21

United States Code, Title 10

(Added)(DAF) United States Code, Title 10 § 1606, *Educational Assistance for Members of the Select Reserve*

(Added)(DAF) United States Code, Title 10 § 1607, *Educational Assistance for Reserve Component Members Supporting Contingency Operations and Certain Other Operations*

USC § 10147 and 12301

United States Code, Title 38
Section 38 USC § 3322:

DoD Directive 5124.02, "Under Secretary of Defense for Personnel and Readiness (USD(P&R))," June 23, 2008

DoD Instruction 1327.07, "Career Intermission Program for Service Members," October 18, 2018, as amended

DoD Instruction 1332.18, "Disability Evaluation System (DES)," August 5, 2014, as amended

(Added)(DAF) DoD Instruction 1336.05, "Automated Extract of Active Duty Military Personnel Records" July 28, 2009, as amended

DoD Manual 1348.33, Volume 3, "Manual of Military Decorations and Awards: DoD-Wide Personal Performance and Valor Decorations," December 21, 2016, as amended

DoD Manual 7730.69, Volume 1, "Uniformed Services Human Resources Information System: Main Reporting Requirements," September 1, 2023

(ADDED)(DAF) DD Form 214, *Certificate of Release or Discharge from Active Duty*
(ADDED)(DAF) DD Form 2366, *Montgomery GI Bill Act of 1984 (MGIB)*
(ADDED)(DAF) DD Form 22-1990, *Application for VA Education Benefits*

Public Law 117-297, "Veterans Eligible to Transfer School (VETS) Credit Act," December 27, 2022

Public Law 117-328, "Consolidated Appropriations Act, 2023," December 29, 2022

(ADDED)(DAF) Public Law 111-377, Section 111, Bar to *Duplication of Certain Educational Assistance Benefits*

The Transferability of Educational Benefits Beneficiary Guide[1]

(Added) (DAF) DAFPD 36-26, *Total Force Development and Management*, 15 April 2022
(Added) (DAF) AFI 33-322, Records Management and Information Governance Program, 28 July 2021
(Added) (DAF) DAFI 36-2008, *Voluntary Limited Period of Active Duty (VLPAD) for Air Reserve Component Service Members and the Career Intermission Program*, 1 February 2021
(Added)(DAF) DAFI 36-3203, *Service Retirements,* 29 January 2021
(Added)(DAF) AFMAN 36-2100, *Military Utilization and Classification*, 7 April 2021
(Added)(DAF) DAFI 36-2670, *Total Force Development, 25 June 2020*

[1] May be accessed through the milConnect Online Help System at https://milconnect.dmdc.osd.mil/milconnect/.